

THE RED HAT ENTERPRISE AGREEMENT NORTH AMERICA



The Agreement (as further described in Section 1.2 below) is between Client and Red Hat, LLC ("Red Hat") and addresses unique commercial considerations that apply to Red Hat Products, open source software, and Red Hat's subscription business model.

1. The Mechanics of the Agreement

- 1.1 Ordering.** The Agreement applies to Red Hat Products that you purchase or otherwise acquire the right to access or use, including Subscriptions, Professional Services, Training Services, Online Services and other Red Hat offerings, whether obtained directly from Red Hat or from a Business Partner. You may order Red Hat Products directly from Red Hat by submitting an Order Form or from a Business Partner using the Business Partner's ordering procedure. Affiliates of either party may conduct business under the Agreement by signing an Order Form or other document that references these General Terms and may include additional terms relating to pricing, local requirements or other transaction details. Specific pricing established in an Order Form does not extend globally unless specifically agreed by the parties.
- 1.2 Structure.** The Agreement consists of three components (a) these General Terms; (b) the Product Appendices (which may include end user license agreements and supported life cycles) applicable to Your Products; and (c) if applicable, all Order Forms. Certain terms are defined in the Definitions section at the end of the General Terms. If you order Red Hat Products from a Business Partner, any agreement that you enter into with the Business Partner is solely between you and the Business Partner and will not be binding on Red Hat (except to the extent that your agreement with a Business Partner references this Agreement).

2. Term

- 2.1 Agreement Term.** The Agreement begins on the Effective Date and continues until it is terminated as set forth below.
- 2.2 Services Term.** Unless otherwise agreed in writing, a Service that you order will start at the earliest of (a) your first use of the Service; (b) the date you purchased the Service; or (c) the start date contained in the Order Form, and will end at the expiration of the Services Term unless sooner terminated as set forth in Section 4, below. After this initial term, the term for Subscription Services may be renewed upon mutual agreement of Client and Red Hat. Any Services that you order must be consumed during the applicable Services Term and any unused Services will expire.

3. Fees and Payment

- 3.1 Payment of Fees.** Section 3.1 applies only to Red Hat Products ordered directly from Red Hat. The payment terms applicable to Red Hat Products purchased from a Business Partner are included in your Business Partner agreement.
- a) Unless otherwise set forth in an Order Form, you agree to pay Fees (1) for Professional Services and Training Services at the time of your order; and (2) for all other Red Hat Products, no later than 30 days after the date of Red Hat's invoice. Credit is subject to Red Hat's approval and Red Hat may change credit terms.
 - b) Fees do not include reasonable out-of-pocket expenses, shipping costs, Taxes, or service provider fees (such as payment processor or vendor management) and you agree to pay or reimburse Red Hat for such amounts, to the extent such amounts (other than Taxes and service provider fees, which Client agrees to pay or reimburse Red Hat for regardless) are contemplated in an Order Form. You must pay the Fees and expenses without withholding or deduction. If you are required to withhold or deduct any Taxes from the Fees or expenses, then you agree to increase the amount payable to Red Hat by the amount of such Taxes so that Red Hat receives the full amount of all Fees and expenses. All Fees, expenses and other amounts paid under the Agreement are non-refundable. The Software Subscription Fees are for Services; there are no Fees associated with the Software licenses.
 - c) If you are purchasing by credit card, then you (1) authorize Red Hat to charge your credit card for all amounts due; and (2) agree to provide updated credit card information to Red Hat as needed to pay the Fees or other amounts owed.
- 3.2 Basis of Fees.** Fees are determined by counting the Units associated with the applicable Red Hat Product, as described in the Product Appendix and/or Order Form. For example, Subscriptions may be priced based on the number of physical or virtual nodes. You agree to order and pay for the appropriate type and quantity of Red Hat Products based on the Units you use or deploy. If during the term of the Agreement, the number of Units you use or deploy exceeds the number of Units you have ordered and paid for, you will promptly report to Red Hat or a Business Partner the number of additional Units used or deployed and the date(s) on which they were used or deployed. Red Hat (or the Business Partner) will invoice you and you agree to pay for the additional Units. If you purchase Red Hat Products through a marketplace, you agree that information relating to your use of Red Hat Products may be shared with Red Hat Affiliates (including IBM) or the applicable Business Partner for billing and metering purposes subject to confidentiality obligations set forth in Section 8.

4. Termination

- 4.1 Termination for Cause.** Either party may terminate the Agreement (in whole or with respect to any Order Form or Red Hat Product, whether obtained from Red Hat or a Business Partner) by notice to the other party if (a) the other party materially breaches the Agreement, and does not cure the breach within thirty (30) days after written notice (except in the case of a breach of Section 8, in which case no cure period will apply); or (b) the other party becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, liquidation or assignment for the benefit of creditors. In addition, Red Hat may, at its option and without limiting its other remedies, suspend (rather than terminate) any Services if you breach the Agreement (including with respect to payment of Fees) until the breach is remedied.
- 4.2 Termination for Convenience.** Either party may terminate the Agreement by notice to the other party at any time if all Services Terms have expired.
- 4.3 Effect of Termination; Survival.** The termination or suspension of an individual Order Form, Business Partner order, or any Red Hat Products purchased from Red Hat or a Business Partner will not terminate or suspend any other Order Form, Business Partner order, Red Hat Product

or the remainder of the Agreement unless specified in the notice of termination or suspension. If the Agreement is terminated in whole, all outstanding Order Form(s), Business Partner orders and Services will terminate. If this Agreement, any Order Form or Business Partner order is terminated, you agree to pay for all Units that you used or deployed or that were provided by Red Hat up to the effective date of termination unless Customer properly terminates this Agreement for material breach by Red Hat under Section 4.1, in which case you agree to pay for all Fees, expenses and other amounts under the Agreement up to the effective date of the Termination and Client may be entitled to a pro rata refund of any prepaid fees for Services not yet rendered. Sections 1.2, 3, 4.3, 5.2, 5.3, 8 (to the extent set forth therein), 9, 10 (to the extent set forth therein) and 11-14 will survive the termination of this Agreement.

5. Representations and Warranties

- 5.1** Red Hat represents and warrants that: (a) it has the authority to enter into this Agreement; (b) the Services will be performed in a professional and workmanlike manner by qualified personnel; (c) to its knowledge the Software does not, at the time of delivery to you, include malicious mechanisms or code for the purpose of damaging or corrupting the Software; and (d) the Services will comply in all material respects with laws applicable to Red Hat as the provider of the Services. Client represents and warrants that (a) it has the authority to enter into this Agreement; and (b) its use of Red Hat Products will comply in all material respects with all laws applicable to its use of the Red Hat Products.
- 5.2** TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW AND EXCEPT AS EXPRESSLY PROVIDED IN SECTION 5.1, THE RED HAT PRODUCTS ARE PROVIDED "AS IS" AND WITHOUT ANY REPRESENTATIONS OR WARRANTIES EXPRESS OR IMPLIED, AND RED HAT DISCLAIMS ALL SUCH REPRESENTATIONS AND WARRANTIES, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, NON-INFRINGEMENT, AND FITNESS FOR A PARTICULAR PURPOSE, AND ANY WARRANTIES IMPLIED BY THE COURSE OF DEALING OR USAGE OF TRADE. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, RED HAT AND ITS SUPPLIERS DO NOT REPRESENT OR WARRANT THAT THE RED HAT PRODUCTS WILL BE UNINTERRUPTED, SECURE, ERROR FREE, ACCURATE, COMPLETE, COMPLY WITH REGULATORY REQUIREMENTS, OR THAT RED HAT WILL CORRECT ALL ERRORS. IN THE EVENT OF A BREACH OF THE WARRANTIES SET FORTH IN SECTION 5.1, YOUR EXCLUSIVE REMEDY, AND RED HAT'S ENTIRE LIABILITY WILL BE THE RE-PERFORMANCE OR RE-DELIVERY OF THE DEFICIENT RED HAT PRODUCT, OR IF RED HAT CANNOT SUBSTANTIALLY CORRECT A BREACH IN A COMMERCIALLY REASONABLE MANNER WITHIN THIRTY (30) DAYS, TERMINATION OF THE RELEVANT RED HAT PRODUCT, IN WHICH CASE YOU SHALL BE ELIGIBLE TO RECEIVE A PRO RATA REFUND OF THE FEES PAID FOR THE DEFICIENT RED HAT PRODUCT TERMINATED AS OF THE EFFECTIVE DATE OF TERMINATION. THE EXPLICIT REPRESENTATIONS AND WARRANTIES UNDER THIS AGREEMENT ARE THE CUSTOMER'S COMPLETE AND EXCLUSIVE REPRESENTATIONS AND WARRANTIES AND CUSTOMER DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES AND GUARANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE.
- 5.3** The Red Hat Products have not been tested in all situations under which they may be used. Red Hat will not be liable for the results obtained through use of the Red Hat Products and you are solely responsible for determining appropriate uses for the Red Hat Products and for all results of such use. In particular, Red Hat Products are not specifically designed, manufactured or intended for use in (a) the design, planning, construction, maintenance, control, or direct operation of nuclear facilities; (b) aircraft control, navigation, or communication systems; (c) weapons systems; (d) direct life support systems; or (e) other similar hazardous environments.
- 6. Open Source Assurance.** Purchases of Subscriptions entitles you to participate in Red Hat's Open Source Assurance Program, which is described at <http://www.redhat.com/rhel/details/assurance/> and provides certain protections in the event of a third party infringement claim. The terms for this program are subject to the agreement at http://www.redhat.com/legal/open_source_assurance_agreement.html and are incorporated herein by reference.
- 7. Red Hat Online Properties.** You may be required to create an account to access Red Hat websites and portals. You will provide accurate information when creating an account. You will not access or create multiple accounts in a manner that is (a) intended to avoid, or has the effect of avoiding, payment of Fees; (b) circumventing thresholds or Unit limitations associated with your account; or (c) intended to violate the Agreement. You are solely responsible for all activities in connection with your account and will notify Red Hat promptly if you become aware of any unauthorized use. Your use and access may also be subject to the Product Appendices applicable to the Red Hat Product.

8. Confidentiality

- 8.1** Recipient (a) will not disclose Confidential Information of Discloser to any third party unless Discloser approves the disclosure in writing or the disclosure is otherwise permitted under this Section 8; (b) will use the same degree of care to protect Confidential Information of Discloser as it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care; and (c) may disclose Confidential Information of the Discloser only to its employees, Affiliates, agents, and contractors with a need to know, and to its auditors and legal counsel, in each case, who are under a written obligation (or other professional obligation) to keep such information confidential using standards of confidentiality no less restrictive than those required by this Section 8. These obligations will continue for a period of five (5) years following initial disclosure of the particular Confidential Information. A Recipient may disclose Confidential Information if it is required to do so by applicable law, regulation or court order but, where legally permissible and feasible, will provide advance notice to the Discloser to enable the Discloser to seek a protective order or other similar protection. A Recipient may disclose Confidential Information if it is required to do so by applicable law, regulation or court order but, where legally permissible and feasible, will provide advance notice to the Discloser to enable the Discloser to seek a protective order or other similar protection.
- 8.2** Information is not Confidential Information, if (a) the information is or becomes publicly available other than as a result of the Recipient's breach of this Agreement; (b) the Recipient, at the time of disclosure, knows or possesses the information without obligation of confidentiality or thereafter obtains the information from a third party not under an obligation of confidentiality; (c) the Recipient independently develops the information without use of the Discloser's Confidential Information; (d) the information is generally known or easily developed by someone with ordinary

skills in the business of the Recipient; or (e) the information is licensed under an open source license (as defined by the Open Source Initiative (<https://opensource.org/>)).

- 8.3 Confidential Information that is disclosed prior to termination of this Agreement will remain subject to this Agreement for the period set forth above. Upon written request of the Discloser, the Recipient will promptly return or destroy all Confidential Information, except for Confidential Information stored in routine back-up media not accessible during the ordinary course of business.

9. Client Information, Feedback, Reservation of Rights, & Review

- 9.1 **Client Information.** If you provide Client Information in connection with your use of or access to Red Hat Products, Red Hat, its Affiliates, and Suppliers may use such Client Information in connection with the Red Hat Products (subject to Section 8 with respect to disclosure of Client Information that constitutes Confidential Information). You represent and warrant that your provision (and Red Hat's use) of Client Information under this Agreement will not require any additional consents or licenses, will comply with applicable law, and will not violate any intellectual property, proprietary, privacy, or other right of any third party. As between Red Hat and you, subject to the rights granted in this Section, you retain all of your rights in and to Client Information. You acknowledge that to provide the Services, it may be necessary for Client Information to be transferred between Red Hat, its Affiliates, Business Partners and Suppliers, which may be located worldwide.

- 9.2 **No Personal Data.** Except with respect to Online Services covered by Product Appendix 4, you agree not to provide to Red Hat personal data subject to the General Data Protection Regulation (the "GDPR") or a similar law requiring a contract governing the processing of personal data between you and Red Hat where Red Hat is acting as a processor (as such term is defined in the GDPR or the applicable law) on behalf of you as part of the Services. In the event of a change where Red Hat will act as a processor of personal data, you will notify Red Hat in advance in writing and the parties shall agree on the terms of a data processing addendum, which will amend this Agreement, as is reasonably required to comply with GDPR and similar data protection laws, if applicable.

- 9.3 **Feedback.** You may voluntarily provide Red Hat with Feedback in connection with your use of Red Hat Products, but have no obligation to do so. If you choose to do so, Red Hat may use Feedback, provided such Feedback is anonymized and not identifiable to you, for any purpose, including incorporating the Feedback into, or using the Feedback to develop and improve, Red Hat Products and other Red Hat offerings without attribution or compensation. Feedback is not confidential information. You grant Red Hat a perpetual and irrevocable license to use all Feedback for any purpose. You agree not to provide Feedback that to your knowledge would violate applicable laws or include proprietary information of a third party.

- 9.4 **Reservation of Rights.** Red Hat grants to you only those rights expressly granted in the Agreement with respect to the Red Hat Products and reserves all other rights in and to the Red Hat Products (including all intellectual property rights). Red Hat may collect and use for any purpose, such as to improve Red Hat Products, aggregate anonymous data about your use of the Red Hat Products, provided that "aggregate anonymous data" means any such data that will not include any personal data and will be anonymized and de-identified in a manner that prevents any third party from identifying any person or that you are the source of such data. Nothing in this Agreement will limit Red Hat from providing software, materials, or services for itself or other clients, irrespective of the possible similarity of such software, materials or services to those that might be delivered to you. Nothing will prohibit or restrict either party's right to develop, use or market products or services similar to or competitive with the other party; provided, however, that neither party is relieved of its obligations under Section 8 of this Agreement.

10. **Review.** While the Agreement is in effect and for one (1) year thereafter, Red Hat or its designee, acting in accordance with Section 8, may inspect your records to verify your compliance with this Agreement. You agree to (a) respond promptly to reasonable requests for information, documents and/or records; (b) grant appropriate access for on-site visits in order to verify your compliance; and (c) reasonably cooperate in connection with any such verification. Red Hat will provide at least thirty (30) days prior written notice for any on-site visits, and will conduct on-site visits during regular business hours in a manner that reasonably minimizes interference with your business. If Red Hat notifies you of any noncompliance, then you will resolve the non-compliance and/or underpayment within fifteen (15) days from the date of notice.

11. Indemnification and Limitations of Liability.

- 11.1 **INDEMNIFICATION FOR BODILY INJURY OF DAMAGE TO PROPERTY.** RED HAT AND CLIENT ("INDEMNIFYING PARTY"), EACH AGREES THAT IF A THIRD PARTY BRINGS A CLAIM AGAINST THE OTHER ("INDEMNIFIED PARTY") FOR DEATH OR BODILY INJURY TO PERSONS OR PHYSICAL DAMAGE TO TANGIBLE PERSONAL PROPERTY OR REAL PROPERTY ARISING OUT OF THE INDEMNIFYING PARTY'S GROSS NEGLIGENCE IN THE PERFORMANCE OF THIS AGREEMENT, THE INDEMNIFYING PARTY WILL DEFEND THE INDEMNIFIED PARTY AGAINST SUCH CLAIM AT ITS EXPENSE AND PAY ALL COSTS, DAMAGES AND ATTORNEY'S FEES THAT A COURT FINALLY AWARDS OR THAT ARE INCLUDED IN A SETTLEMENT APPROVED BY THE INDEMNIFYING PARTY. THE INDEMNITIES IN THIS SECTION ARE CONTINGENT UPON: (1) THE INDEMNIFIED PARTY PROMPTLY NOTIFYING THE INDEMNIFYING PARTY IN WRITING OF ANY CLAIM WHICH MAY GIVE RISE TO A CLAIM FOR INDEMNIFICATION HEREUNDER; (2) THE INDEMNIFYING PARTY BEING ALLOWED TO CONTROL THE DEFENSE AND SETTLEMENT OF SUCH CLAIM; PROVIDED, HOWEVER, THAT THE INDEMNIFYING PARTY SHALL NOT BE ALLOWED TO SETTLE A CLAIM WHERE THE INDEMNIFIED PARTY ADMITS TO FAULT OR LIABILITY WITHOUT THE INDEMNIFIED PARTY'S CONSENT TO SAME; AND (3) THE INDEMNIFIED PARTY COOPERATING WITH ALL REASONABLE REQUESTS OF THE INDEMNIFYING PARTY (AT THE INDEMNIFYING PARTY'S EXPENSE) IN DEFENDING OR SETTLING A CLAIM. THE INDEMNIFIED PARTY WILL HAVE THE RIGHT, AT ITS OPTION AND EXPENSE, TO PARTICIPATE IN THE DEFENSE OF ANY SUIT OR PROCEEDING THROUGH A COUNSEL OF ITS OWN CHOOSING.

- 11.2 **DISCLAIMER OF DAMAGES.** TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEITHER PARTY, NOR ITS AFFILIATES, WILL BE LIABLE FOR ANY INCIDENTAL, CONSEQUENTIAL, SPECIAL, INDIRECT, EXEMPLARY OR PUNITIVE DAMAGES, OR FOR ANY DAMAGES FOR LOST OR DAMAGED DATA, LOST PROFITS, LOST SAVINGS OR BUSINESS OR SERVICE INTERRUPTION, EVEN IF SUCH PARTY WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND REGARDLESS OF THE FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED REMEDY.

- 11.3 LIMITATION OF LIABILITY.** SUBJECT TO THE EXCLUSIONS SET FORTH IN SECTION 11.4, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEITHER PARTY'S (NOR ITS AFFILIATES') TOTAL AND AGGREGATE LIABILITY WITH RESPECT TO ANY CLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT WILL EXCEED THE FEES RECEIVED BY RED HAT WITH RESPECT TO THE PARTICULAR RED HAT PRODUCT GIVING RISE TO LIABILITY UNDER THE MOST APPLICABLE ORDERING DOCUMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE FIRST EVENT GIVING RISE TO SUCH CLAIM; PROVIDED THAT IN NO EVENT WILL EITHER PARTY (OR ITS AFFILIATES') TOTAL AND AGGREGATE LIABILITY FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THIS AGREEMENT EXCEED TWO (2) TIMES THE FEES RECEIVED BY RED HAT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE FIRST EVENT GIVING RISE TO LIABILITY UNDER THIS AGREEMENT.
- 11.4** THE LIMITATIONS SET FORTH IN THIS SECTION 11 APPLY REGARDLESS OF THE NATURE OF THE CLAIM, WHETHER BASED ON CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE OR OTHER LEGAL THEORY.
- 11.5 EXCLUSIONS FROM LIMITATIONS OF LIABILITY.** THE LIMITATIONS SET FORTH IN THIS SECTION 11 DO NOT LIMIT: (A) CLAIMS OF BODILY INJURY (INCLUDING DEATH) AND DAMAGE TO REAL OR TANGIBLE PERSONAL PROPERTY CAUSED BY THE NEGLIGENCE OF RED HAT OR ITS AFFILIATES (B) BREACH BY A PARTY OF THE CONFIDENTIALITY OBLIGATIONS UNDER SECTION 8; C) LOSSES RELATED TO FRAUD, GROSS NEGLIGENCE, AND WILLFUL MISCONDUCT; D) CLIENT'S PAYMENT OBLIGATIONS AND E) ANY INDEMNITY OBLIGATIONS UNDER APPENDIX 4.
- 12. Governing Law and Claims.** The Agreement, and any claim, controversy or dispute arising out of or related to the Agreement, are governed by and construed in accordance with the laws of the State of New York without giving effect to any conflicts of laws provision. To the extent permissible, the United Nations Convention on Contracts for the International Sale of Goods will not apply, even if adopted as part of the laws of the State of New York. Any claim, suit, action or proceeding arising out of or relating to this Agreement or its subject matter will be brought exclusively in the state or federal courts of New York County, NY, and each party irrevocably submits to the exclusive jurisdiction and venue. No claim or action, regardless of form, arising out of or related to the Agreement may be brought by either party more than two (2) years after the party first became aware or reasonably should have been aware of the basis for the claim. To the fullest extent permitted, each party waives the right to trial by jury in any legal proceeding arising out of or relating to this Agreement or the transactions contemplated hereby.
- 13. Miscellaneous**
- 13.1 Export.** Red Hat may supply you with Controlled Materials. You agree to comply with all applicable export and import laws or regulations, including any local laws in your jurisdiction concerning your right to import, export or use Controlled Materials and agree that Red Hat is not responsible for your compliance. Without limiting the foregoing, you agree that you will not export, disclose, re-export or transfer the Controlled Materials, directly or indirectly, to (a) any U.S. embargoed destination; (b) any party who you know or have reason to know will utilize them in the design, development or production of nuclear, chemical or biological weapons, or rocket systems, space launch vehicles, or sounding rockets, unmanned air vehicle systems, or any other restricted end-use; or (c) anyone on (or controlled by a person or entity on) a U.S. government restricted persons list, including those who have been prohibited from participating in U.S. export transactions by any federal agency of the U.S. government. You will not provide Red Hat with any data or engage Red Hat in any activity subject to the International Traffic in Arms Regulations (ITAR). In addition, you will not, and will not allow third parties under your control to use the Red Hat Products or Services for any activity subject to the ITAR. Red Hat may terminate the Agreement and/or the applicable Order Form without liability to you if (a) you breach (or Red Hat has commercially reasonable belief that you have breached) this paragraph or the export provisions of an end user license agreement for any Software; or (b) Red Hat is prohibited by law or otherwise restricted from providing Red Hat Products to you.
- 13.2 Notices.** Notices must be in English, in writing, and will be deemed given upon receipt, after being sent using a method that provides for positive confirmation of delivery, including through an automated receipt or by electronic log, to Panasonic Avionics Corporation 3347 Michelson Drive, Suite 100 Irvine, CA 92612. Any notice from you to Red Hat must include a copy sent to: Red Hat, LLC, Attention: General Counsel, 100 East Davie Street, Raleigh, North Carolina 27601; Email: legal-notices@redhat.com. Billing notices to you will be addressed to the billing contact designated by you.
- 13.3 Assignment.** Upon written notice, either party may assign this Agreement to (a) an Affiliate; or (b) a successor or acquirer pursuant to a merger or sale of all or substantially all of such party's assets if, in each case, the assignee's financial condition and creditworthiness are deemed sufficient by the non-assigning party and the assignment will not affect the non-assigning party's obligations under the Agreement. Any other assignment will be deemed void and ineffective without the prior written consent of the other party. Subject to the foregoing, this Agreement will be binding upon and will inure to the benefit of the parties and their respective successors and permitted assigns.
- 13.4 Waiver.** A waiver by a party under this Agreement is only valid if in writing and signed by an authorized representative of such party. A delay or failure of a party to exercise any rights under this Agreement will not constitute or be deemed a waiver or forfeiture of such rights.
- 13.5 Independent Contractors.** The parties are independent contractors and nothing in the Agreement creates an employment, partnership or agency relationship between the parties or any Affiliate. Each party is solely responsible for supervision, control and payment of its personnel. Red Hat may subcontract Services to third parties or Affiliates as long as (a) subcontractors agree to protect Confidential Information; and (b) Red Hat remains responsible to you for performance of its obligations.
- 13.6 Third Party Beneficiaries.** The Agreement is binding on the parties to the Agreement and, other than as expressly provided in the Agreement, nothing in this Agreement grants any other person or entity any right, benefit or remedy.
- 13.7 Force Majeure.** Neither party is responsible for nonperformance or delay in performance of its obligations (other than payment of Fees) due to causes beyond its reasonable control, and without the fault of the claiming Party, such as the following events and consequences arising out of any of them: fire, flood, unusually severe weather, war, warlike circumstances, action of civil or military authority, terrorist acts, an epidemic or a pandemic, strikes, or any law made or any action taken by a government or public authority.
- 13.8 Complete Agreement and Order of Precedence.** The Agreement represents the complete agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous agreements and proposals, whether written or oral, with respect to such subject matter. Any terms contained in any other documentation that you deliver to Red Hat, including any purchase order or other order-related document (other than an Order Form), are void and will not become part of the Agreement or otherwise bind the parties. If there is a conflict

between the General Terms, the Product Appendices and/or an Order Form, the General Terms will control unless otherwise expressly provided in the Product Appendices or Order Form.

13.9 Counterparts. The Agreement may be executed in counterparts, each of which will be deemed an original and all of which will constitute one and the same document. The parties may exchange signature pages by email or electronic signature process and such signatures will be effective to bind the parties to the Agreement.

13.10 Severable. If any provision of the Agreement is held by a court of competent jurisdiction to be invalid or unenforceable, the remaining provisions of this Agreement will remain in effect to the greatest extent permitted by law.

13.11 United States Government End Users. The Software and its documentation are "Commercial items," "Commercial computer software" and "Computer software documentation" as defined by the Federal Acquisition Regulations ("FAR") and Defense Federal Acquisition Regulations Supplement ("DFARS"). Pursuant to FAR 12.211, FAR 12.212, DFARS, 227.7202-1 through 227.7202-4, and their successors, the U.S. Government acquires the Software and its documentation subject to the terms of this Agreement.

13.12 Insurance

13.12.1 During the term of the Agreement, Red Hat will maintain, with an insurer having a financial strength rating of at least "A-VII" from A.M. Best Company, the following insurance policies:

13.12.1.1 Commercial general liability insurance in the amount of not less than one million dollars (\$1,000,000) per occurrence and five million dollars (\$5,000,000) in the aggregate.

13.12.1.2 Professional errors and omissions/Cyber liability in the amount of not less than three million dollars (\$3,000,000) per claim and three million dollars (\$3,000,000) in the aggregate.

13.12.1.3 Employer's liability with a total limit of five million dollars (\$5,000,000) each accident for bodily injury by accident and five million dollars (\$5,000,000) each employee for bodily injury by disease.

13.12.1.4 Worker's compensation insurance covering obligations imposed by US federal and state statutes having jurisdiction over Red Hat consultants engaged in performing the Professional Services.

On Client's reasonable written request, Red Hat shall produce a Certificate of Insurance as evidence of compliance with these requirements.

14. Definitions

14.1 "Affiliate" means an entity that owns or controls, is owned or controlled by, or is under common control or ownership with a party, where "control" is the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of an entity, whether through ownership of voting securities, by contract or otherwise.

14.2 "Agreement" is defined in Section 1.2.

14.3 "Business Partner" means a cloud provider, distributor, reseller, OEM or other third party authorized to resell or distribute Red Hat Products.

14.4 "Business Partner order" means an order for a Red Hat Product placed through a Business Partner.

14.5 "Client" or "you" means the person or entity acquiring the right to use or access the Red Hat Products and which is a party to this Agreement.

14.6 "Client Information" means any data, information, software or other materials that you provide to Red Hat under the Agreement.

14.7 "Confidential Information" means information disclosed by the Discloser to the Recipient during the term of the Agreement that (a) is marked confidential; (b) if disclosed orally, is clearly described as confidential at the time of disclosure and is subsequently set forth in writing, marked confidential, and sent to the Recipient within thirty (30) days following the oral disclosure; or (c) is of a nature that the Recipient knows is confidential to the Discloser or should reasonably be expected to know is confidential.

14.8 "Controlled Materials" means software or technical information that is subject to the United States Export Administration Regulations.

14.9 "Discloser" is a party disclosing Confidential Information under this Agreement.

14.10 "Effective Date" means earliest of: (a) the date of the last signature on this Agreement or an Order Form; (b) your online acceptance of the Agreement; or (c) when you first receive access to a Red Hat Product.

14.11 "Feedback" means any ideas, suggestions, proposals or other feedback you may provide regarding Red Hat Products.

14.12 "Fees" means the amounts paid or to be paid by Client to Red Hat (directly or through a Business Partner) for Red Hat Products.

14.13 "General Terms" means the terms contained in Sections 1 – 14 of this document.

14.14 "Online Services" means Red Hat branded cloud or hosted services offerings.

14.15 "Order Form" means Red Hat's standard ordering document(s) or online purchasing form used to order Red Hat Products.

14.16 "Product Appendices" means (a) the Red Hat Product Appendices set forth here: <https://www.redhat.com/en/about/agreements#prodapps> as such appendices may be updated by Red Hat from time to time; or (b) for Professional Services, that are incorporated into an applicable statement of work.

14.17 "Professional Services" means consulting services provided by Red Hat.

14.18 "Recipient" is the party receiving Confidential Information under this Agreement.

14.19 "Red Hat Products" means Software, Services, and other Red Hat branded offerings made available by Red Hat.

14.20 "Service(s)" means Red Hat branded services offered as Subscriptions, Professional Services, Training Services, Online Services or other services offered by Red Hat.

14.21 "Services Term" means the period during which you are entitled by Red Hat to use, receive access or consume a particular Red Hat Product pursuant to an Order Form or Business Partner order.

14.22 "Software" means Red Hat branded software that is included in Red Hat Product offerings.

14.23 "Subscription" means a time bound Red Hat Product offering.

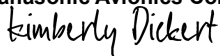
14.24 "Supplier" means a third party that provides services to Red Hat in order for Red Hat to offer Services to its customers and/or Business Partners.

14.25 "Taxes" means any form of taxation of whatever nature and by whatever authority imposed, including any interest, surcharges or penalties, arising from or relating to this Agreement or any Red Hat Products, other than taxes based on the net income of Red Hat.

- 14.26 "Training Services"** means access to Red Hat training courses, including online courses or courses provided at a site as may be agreed by the parties.
- 14.27 "Unit"** means the basis upon which Fees are determined for Red Hat Products as set forth in Product Appendices or an Order Form.
- 14.28 "Your Products"** means the Red Hat Products that you have purchased, licensed, or otherwise acquired the right to access or use.

Each party has executed this Agreement by its duly authorized representatives as of the Effective Date.

Signed by:
Panasonic Avionics Corporation



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Signature

Kimberly Dickert

Printed Name

Subcontracts Manager

Title

3/17/2026

Date

Signed by:
Red Hat, LLC



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Signature

Richard Parrish

Printed Name

Americas Controller - Red Hat

Title

3/17/2026

Date